

mentioned act, the Common Pleas Division and the Exchequer Division have been abolished].

Equitable estates and rights are now to be noticed and acted upon in all the courts, and where there is any conflict between the rules of equity and the rules of common law, the rules of equity are to prevail. See sections 24 & 25 of the first-mentioned Act.

Subject to any rules to be made in pursuance of the new enactments, all causes and matters pending in the Court of Chancery at the commencement of the Act of 36 & 37 Vict. are transferred to the *Chancery division of the High Court of Justice*, and, subject as aforesaid, all causes and matters for the execution of *trusts*, charitable or private, are to be assigned to the same division, and for that purpose every document by which the cause or matter is commenced is to be marked for that division, or with the name of the Judge to whom the cause or matter is to be assigned. See sections 33 & 34.